

The U.P. Grant of Reward By the Magistrate Rules, 1979

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State of Uttar Pradesh - Act

The U.P. Grant of Reward By the Magistrate Rules, 1979

UTTAR PRADESH

India

The U.P. Grant of Reward By the Magistrate Rules, 1979

Rule THE-U-P-GRANT-OF-REWARD-BY-THE-MAGISTRATE-RULES-1979 of 1979

Published on 31 August 1979

Commenced on 31 August 1979

[This is the version of this document from 31 August 1979.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Grant of Reward By the Magistrate Rules, 1979

Published Vide Notification No. 7299-E/13-517-78-U.P. Act-4/1916-Rule-1979, dated 31st August, 1979

1.

Short title, extent and commencement.

- (i) These rules may be called the Uttar Pradesh Grant of Reward by the Magistrate Rules, 1979.

(ii)

They shall apply to all prohibition areas in Uttar Pradesh.

(iii)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Definition.

- In these rules,-

(i)

"Prohibition Area" means an area wherein prohibition in relation to any intoxicant has been notified by the State Government in accordance with the provisions of Section 37-A of the U.P. Excise Act, 1910 (Act No. IV of 1910);

(ii)

"Informer" means a person who initially provides a clue or an information found material in detection of an excise offence;

(iii)

"Official" means a Government servant who is not an officer, and is working in the department concerned with the excise offences;

(iv)

"Officer" means a Government servant who is an officer working in the department concerned with the excise offences.

3.

Power of the Magistrate to grant reward.

- A Magistrate trying an excise case may, at his discretion, grant reward to an Official, Officer or Informer out of and up to fifty per cent, of fine imposed by him. In granting the reward, the Magistrate shall have regard to the contribution of the official, officer or informer :

Provided that the reward may be granted only if a fine of rupees one thousand or more has been imposed :

Provided further that the granted reward shall be payable only when the fine has been recovered.

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